



File No.: EXP202400654

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 30, 2023, A.A.A. with NIF ***NIF.1 (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the REGIONAL MINISTRY OF AUTONOMOUS ADMINISTRATION, ENVIRONMENT, AND CLIMATE CHANGE OF THE PRINCIPALITY OF ASTURIAS with NIF S3333001J (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

On March 15, 2023, the resolution issued on ***DATE.1 by the Director of the Asturian Institute of Public Administration "Adolfo Posada" was published in the Official Bulletin of the Principality of Asturias, by which an administrative file is forwarded and interested parties are summoned in the contentious-administrative appeal ordinary procedure XXX/2023, filed before the High Court of Justice of Asturias. In this act, it is stated that the claimant has filed the contentious-administrative appeal that originates the procedure, identifying her by her full name.

She claims that the inclusion of her identifying data in the published act is unnecessary and disproportionate; therefore, she concludes that the respondent has violated Article 5 of the Organic Law on Data Protection. She also highlights that in other resolutions published for the same purpose, initials have been used instead of revealing the full name and surname.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on January 15, 2024, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on January 15, 2024, as stated in the acknowledgment of receipt in the file.

On February 1, 2024, this Agency received a response indicating that the respondent considers the identification of the interested party by her full name in the resolution published on ***DATE.1 by the Asturian Institute of Public Administration "Adolfo Posada" to be appropriate and proportionate.

THIRD: On February 6, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On May 22, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), on June 10, 2024, the respondent submitted a written statement of allegations in which it stated that "from this Technical General Secretariat, the following ALLEGATIONS are made:

FIRST.- An report from the Selection Service of the IAAP was issued on June 5, 2024 (Annex I), sent to this Technical General Secretariat on June 7. According to it, when the Resolution was issued that led to the publication of the summons to potential interested parties in the procedure subject to the complaint, it was understood that it was appropriate under the regulations on personal data protection for the reasons set forth in that report.

Notwithstanding the above, it is indicated in that report that, as a preventive measure, and in view of

the request for information dated January 15, 2024, from the Spanish Agency for Data Protection to the respondent, in subsequent publications by the Asturian Institute of Public Administration "Adolfo Posada," personal data subject to publication were minimized. By way of example:

- Resolution of April 17, 2024, from the Ministry of the Presidency, Demographic Challenge, Equality, and Tourism, which orders the execution of the favorable judgment issued in the contentious-administrative appeal ordinary procedure 130/2022, filed before the Social Court No. 4 of Oviedo by Mr. A. R. C., against the Regional Ministry of Autonomous Administration, Environment, and Climate Change of the Principality of Asturias, the Asturian Institute of Public Administration "Adolfo Posada," and the Autonomous Agency Symphony Orchestra of the Principality of Asturias (BOPA 8-V-2024).

SECOND.- In compliance with the requested precautionary measure and given that publications already made in the BOPA cannot be changed, the data of the claimant will be immediately desindexed from that search engine, meaning that the list of results obtained from a search conducted using her full name will be eliminated, so that if her data is entered into the search engine, no publication would be obtained.

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To this end, a request is sent to the competent personnel for the de-indexing, attaching a reproduction of the email sent by said personnel justifying the actions carried out (Annex II).

THIRD.- The criterion expressed by the Spanish Agency for Data Protection is accepted, and consequently, the publications made by this Department and its respective central bodies, related to announcements of the filing of contentious-administrative appeals, will be carried out in accordance with the principle of minimization of personal data.

Finally, for informational purposes, this same criterion is adopted in the publications of Resolutions that order the execution of Judgments, in compliance with the provisions of Article 26.5 of Decree 20/1997, of March 20, which regulates the organization and functioning of the Legal Service of the Principality of Asturias; thus, on June 6, 2024, the Resolution ordering the execution of the dismissive Judgment against the claimant of this procedure is published in the BOPA, the dispositive part of which is reproduced as follows:

"We dismiss the appeal filed by the representation of A.A.A. against the Resolution of ***DATE.2 by the Director of the Adolfo Posada Institute of Public Administration, which approves the specific bases of the selective process for the provision of (...) of the Administration of the Principality of Asturias, corresponding to the extraordinary Public Employment Offer for the stabilization of temporary employment in application of Law 20/2021, of December 28, on urgent measures for the reduction of temporality in public employment, by the procedure of competitive examination (art. 2.1 of Law 20/2021) ...".

SIXTH: On July 26, 2024, a resolution proposal was issued in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), which was received on July 29, 2024, as noted in the acknowledgment of receipt in the file, with no manifestation presented in this regard.

In said resolution proposal, it is requested that the Director of the Spanish Agency for Data Protection declare that the DEPARTMENT OF AUTONOMOUS ADMINISTRATION, ENVIRONMENT AND CLIMATE CHANGE, with NIF S3333001J, has violated the provisions of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: On March 15, 2023, the resolution issued on ***DATE.1 by the Director of the Asturian Institute of Public Administration "Adolfo Posada" was published in the Official Bulletin of the Principality of Asturias, by which the administrative file is sent and the interested parties are summoned in the contentious-administrative appeal ordinary procedure XXX/2023, filed before the Superior Court of Justice of Asturias. In this act, it is stated that the claimant has filed the contentious-administrative appeal that originates the procedure, identifying her by her name and surname.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, the claimant states that on March 15, 2023, the resolution issued on ***DATE.1 by the Director of the Asturian Institute of Public Administration "Adolfo Posada" was published in the Official Bulletin of the Principality of Asturias, in which it is stated that the claimant has filed the contentious-administrative appeal that originates the procedure, identifying her by her name and surname.

The responding party carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States.

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In relation to such facts, it should also be noted that Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, hereinafter referred to as the LOPDGDD, in its seventh additional provision, in its first section, regarding the identification of the interested parties in notifications through announcements and publications of administrative acts, states the following:

"1. When the publication of an administrative act containing personal data of the affected party is necessary, the affected party shall be identified by their name and surname, adding four random

numerical digits from the national identity document, foreign identity number, passport, or equivalent document. When the publication refers to a plurality of affected parties, these random digits must be alternated.

When it comes to notification by means of announcements, particularly in the cases referred to in Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the affected party shall be identified exclusively by the complete number of their national identity document, foreign identity number, passport, or equivalent document. When the affected party lacks any of the documents mentioned in the two preceding paragraphs, the affected party shall be identified solely by their name and surname. In no case should the name and surname be published together with the complete number of the national identity document, foreign identity number, passport, or equivalent document.”

In this specific case, it should be noted that the publication identifying the claimant by name corresponds to the announcement of the filing of a contentious-administrative appeal so that interested parties may be aware of its existence and, if applicable, participate in it. As can be observed, this is not the situation described by the aforementioned additional provision, which provides for the identification of interested parties in administrative acts that are to be published, but rather the publication of a fact—the filing of a judicial appeal—against an administrative act for the purpose of informing potential interested parties.

For all these reasons, it can be considered that the publication in the Official Bulletin of the Principality of Asturias of the name and surname of the claimant—the acting party in the appeal—is not necessary for the fulfillment of the purpose of the publication, as previously described.

The responding party, in response to the actions taken by the AEPD on January 15, 2024, forwarding the complaint filed against that party, stated that the nominal publication of the acting party of a contentious-administrative appeal in the announcement for potential interested parties is correct, in accordance with the provisions of the seventh additional provision of the LOPDGGD.

On June 10, 2024, in response to the initiation agreement of this sanctioning procedure, the responding party submitted allegations acknowledging the facts constituting the infringement and proceeded with the immediate cessation of the actions.

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public dissemination of the personal data of the claimant since the notification of this initiation agreement, and has proceeded to minimize the personal data subject to publication and to de-index the claimant's data from the search engine in such a way that it has adhered to the criteria expressed by the Spanish Agency for Data Protection (Agencia Española de Protección de Datos, AEPD). However, although the measures required by the AEPD have been adopted, the infringement committed by the respondent must be declared, as the publication of the name and surname of the claimant has constituted a violation of the current data protection regulations, specifically the principle of data minimization, Article 5.1 c) of the GDPR.

III

Infringement of Article 5.1 c) of the GDPR

Article 5 of the GDPR establishes that “personal data shall be:

- a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency');
- b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');
- c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');
- d) accurate and, where necessary, kept up to date; all reasonable steps must be taken to ensure that

personal data that are inaccurate with respect to the purposes for which they are processed are erased or rectified without delay ('accuracy');

e) kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be stored for longer periods insofar as they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures required by this Regulation to protect the rights and freedoms of the data subject ('storage limitation');

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality').

The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it ('accountability')."

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Therefore, from the reported facts, it follows that there has been a violation of the principle of data minimization which requires that their processing be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed. It is considered that the respondent, by publishing on March 15, 2023, in the Official Bulletin of the Principality of Asturias the resolution issued on ***DATE.1 by the Director of the Asturian Institute of Public Administration "Adolfo Posada", identifying the claimant by their name and surname, has violated Article 5.1 c) of the GDPR, as indicated in legal basis II.

IV

Classification of the infringement of Article 5.1.c) of the GDPR

The aforementioned infringement of Article 5.1.c) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein, and in particular the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction

In order to determine the administrative fine to be imposed, the provisions of Article 77 of the LOPDGDD regarding the regime applicable to certain categories of controllers or processors must be observed, indicating the following:

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“1. The regime established in this article shall apply to the treatments for which the following are responsible or in charge:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.
- d) The public bodies and entities of public law linked to or dependent on the Public Administrations.
- e) The independent administrative authorities.
- f) The Bank of Spain.
- g) The public law corporations when the purposes of the treatment relate to the exercise of public law powers.
- h) The public sector foundations.
- i) The Public Universities.
- j) The consortiums.
- k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the responsible parties or those in charge listed in section 1 commit any of the infractions referred to in articles 72 to 74 of this organic law, the data protection authority that is competent shall issue a resolution declaring the infraction and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infraction that has been committed, with the exception of that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the responsible party or those in charge of the treatment, to the body to which they hierarchically depend, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous section, the data protection authority shall also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

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Likewise, when the infractions are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible officer and shall order the publication in the corresponding Official State or autonomous Bulletin.

4. The resolutions relating to the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions referred to the entities in section 1 of this article, with express indication of the identity of the responsible party or those in charge of the treatment who have committed the infraction. When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations.”

VI

Responsibility

Law 40/2015, of October 1, on the Legal Regime of the Public Sector, establishes in Chapter III relating to the “Principles of the Sanctioning Power,” in article 28 under the heading “Responsibility,” the following:

“1. Only individuals and legal entities may be sanctioned for acts constituting administrative infractions, as well as, when a Law recognizes them the capacity to act, the groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for them by way of intent or negligence.”

Considering the factors presented, for the purposes provided in article 64.2 b) of law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond for the acts that motivate the initiation of the procedure and its possible qualification shall be an administrative fine.

However, in accordance with article 83.7 of the GDPR, and the provisions of article 77.2 of the LOPDGDD, due to the category of the subject allegedly responsible for the infraction, said sanction is replaced by the declaration of the infraction.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the REGIONAL MINISTRY OF AUTONOMOUS ADMINISTRATION, ENVIRONMENT AND CLIMATE CHANGE, with NIF S3333001J, has infringed the provisions of Article 5.1.c) of the GDPR, an infringement classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the REGIONAL MINISTRY OF AUTONOMOUS ADMINISTRATION, ENVIRONMENT AND CLIMATE CHANGE.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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